

All India Council for Technical Education (Categorisation of Standalone Institutions for Grant of Graded Autonomy) Regulations, 2019

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All India Council for Technical Education (Categorisation of Standalone Institutions for Grant of Graded Autonomy) Regulations, 2019

Rule

ALL-INDIA-COUNCIL-FOR-TECHNICAL-EDUCATION-CATEGORISATION-OF-STANDALONE-INSTITUTIONS-FOR-GRANT-OF-GRADED-AUTONOMY-REGULATIONS-2019 of 2019

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All India Council for Technical Education (Categorisation of Standalone Institutions for Grant of Graded Autonomy) Regulations, 2019

Published vide Notification F. No. AICTE/P&AP/SIs/2019, dated 18.1.2019

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F. No. AICTE/P&AP/SIs/2019. - The following is published for general information: -

Preamble. - Whereas All India Council for Technical Education (AICTE) is mandated to determine, promote and maintain the standards of higher education in Standalone Institutions (SIs);

Whereas, AICTE recognizes the need to create an enabling environment whereby Standalone Institutions can become institutions of global excellence;

Whereas, AICTE recognizes that autonomy is pivotal to promoting and institutionalizing excellence in higher education and that the regulatory framework needs to facilitate better performing institutions towards excellence in higher education.

Therefore, in exercise of the powers conferred under sub-section (1) of section 23 read with section 10(b) (g) (i) (m) of the All India Council for Technical Education Act, 1987, the All India Council for Technical Education hereby makes the following regulations: -

1.

Short title, application and commencement.

(1)

These regulations shall be called the All India Council for Technical Education (Categorisation of Standalone Institutions for Grant of Graded Autonomy) Regulations, 2019.

(2)

They shall apply to all Standalone Institutions conducting courses/programmes with the approval of AICTE as per AICTE Act, 1987.

(3)

They shall come into force from the date of their notification in the Official Gazette of India.

2.

Definitions.

- In these regulations, unless the context otherwise requires: -

(a)

"Accreditation" means the process of quality control in higher education, whereby, as a result of evaluation or assessment or by any other scientific method followed by recognized accreditation agencies, a Standalone Institution or programme(s) conducted therein is recognised as conforming to benchmarked parameters of academic quality;

(b)

"Assessment" means the process involved in ascertaining or verifying the capabilities of Standalone Institution in terms of its physical infrastructure, human resources (including faculty), administration, course curricula, admission and student evaluation procedures and governance structure prior to the commencement of its academic programmes;

(c)

"AICTE" means the All India Council for Technical Education as defined in the All India Council for Technical Education Act, 1987;

(d)

"Score" means cumulative score as followed by NBA or any other Assessment and Accreditation Agencies (AAA) recognized by the AICTE under relevant AICTE regulations, while granting accreditation;

(e)

"National Board of Accreditation (NBA)" means the body established by the AICTE to assess and accredit among others the Standalone Institutions in the country;

(f)

"Open & Distance Learning" mode means a mode of providing flexible learning opportunities by overcoming separation of teacher and learner using a variety of media, including print, electronic, online and occasional interactive face-to-face meetings with the presence of a Standalone Institution or Learner Support Services to deliver teaching-learning experiences, including practical or work experiences;

(g)

"Times Higher Education/QS Rankings" means annual publication of university rankings by Times Higher Education (THE) magazine and by Quacquarelli Symonds (QS);

(h)

"Standalone Institutions" means those institutions which are not affiliated to any of the Universities, and imparting courses through regular or through Open and Distance Learning Systems, leading to Diploma, Post Diploma Certificate, Post Graduate Certificate and Post Graduate Diploma Levels in Management and allied areas, Computer Applications and Travel and Tourism with the approval of AICTE;

Words and expressions used and not defined in these regulations but defined in the All India Council for Technical Education Act, 1987 and not consistent with these regulations shall have the meanings respectively assigned to them in that Act.

3.

Framework for Categorisation of Standalone Institutions for Grant of Graded Autonomy.

- The AICTE shall categorize Standalone Institutions into following three categories i.e. Category-I, Category-II and Category-III based on the parameters laid down in sub-clauses (i), (ii) and (iii) and as notified by the AICTE through detailed guidelines from time to time.

(i)

Category-I Standalone Institution. - Standalone Institution shall be in Category-I if

a. It has been accredited by NBA with a score of 750 or above on a scale of 1000; or

b. It has been ranked among top 500 of reputed world rankings, such as Times Higher Education or QS.

(ii)

Category-II Standalone Institution. - Standalone Institution shall be in Category-II if

? It has been accredited by NBA with a score of 700 and above, upto 750 on a scale of 1000.

(iii)

Category-III Standalone Institution. - Standalone Institution shall be in Category-III if it does not come either under Category-I or Category-II.

4.

Dimensions of Autonomy for Category-I Standalone Institutions.

- 4.1 Standalone Institutions shall be eligible for grants and no inspections by the AICTE shall be required for the same.

4.2

Standalone Institutions may start a new course/programme in disciplines that form a part of its existing academic framework without approval of the AICTE with the nomenclature of Diploma, Post Diploma Certificate, Post Graduate Certificate and Post Graduate Diploma in new and innovative areas that are relevant to local, national or international needs, with information to the AICTE.

4.3

Standalone Institutions may start skill courses, consistent with the National Skills Qualification Framework, without approval of the AICTE, consistent with the approved nomenclature of AICTE.

4.4

Standalone Institutions may open research parks, incubation centres, institute society linkage centres, in self-financing mode, either on its own or in partnership with private partners, without approval of AICTE. However, in all such arrangements, the ownership of all immovable property and that component of movable property procured through the resources of the Institution shall remain with the Standalone Institution.

4.5

Standalone Institutions, subject to the Rules, Regulations and Guidelines of Government of India, may hire, without approval of the AICTE, foreign faculty having taught at any institution appearing in top five hundred (500) of any of the world renowned ranking frameworks, such as the Times Higher Education World University Rankings or the QS Rankings, upto twenty percent over and above of their total sanctioned faculty strength. Standalone Institutions will have the freedom to hire foreign faculty on "tenure/contract" basis as per the terms and conditions approved by their Governing Council/Statutory bodies.

4.6

Standalone Institutions shall be free to admit foreign students on merit, subject to a maximum of twenty percent, over and above of the strength of their approved domestic students. Standalone Institutions would be free to fix and charge fees from foreign students without any restriction.

4.7

Standalone Institutions, while following the pay scales as laid down by the AICTE, shall build in an incentive structure to

attract talented faculty, with the condition that the incentive structure shall have to be paid from their own revenue sources and not from AICTE or Government funds. Such incentive structure shall be strictly merit based with clear defined, transparent and objective criteria and shall not be universal. It must necessarily be approved by the Board of Management of the Standalone Institution. The AICTE shall be informed of the incentive structure within thirty days of approval by the Board of Management of the Standalone Institution.

4.8

Standalone Institutions may engage in academic collaborations with foreign institutions in top 500 of Times Higher Education World University Rankings or QS Rankings or top 200 of discipline specific ranking in Times Higher Education World University Rankings or QS Rankings without approval of the AICTE.

4.9

Standalone Institutions may offer courses in the Open and Distance Learning mode, without approval of the AICTE, provided it satisfies all the norms & standard laid down by AICTE from time to time.

4.10

Standalone Institutions shall be exempted from annual monitoring of their institutions and learning resource centre(s) as stipulated under AICTE Approval Process Handbook (APH) as amended /modified from time to time, except when there is substantive evidence of their not meeting basic minimum criteria or of irregularities or malpractices.

4.11

In case there is any external review required by the AICTE under any statute or executive order, then it would be sufficient that the institution sends a report to the AICTE in a prescribed review format.

5.

Dimensions of Autonomy for Category-II Standalone Institutions.

- 5.1 Standalone Institutions may start a new course/programme in disciplines that form a part of its existing academic framework without approval of the AICTE with the nomenclature of Diploma, Post Diploma Certificate, Post Graduate Certificate and Post Graduate Diploma in new and innovative areas that are relevant to local, national or international needs, with information to the AICTE.

5.2

Standalone Institutions may start skill courses, consistent with the National Skills Qualification Framework, without approval of the AICTE, consistent with the approved nomenclature of AICTE.

5.3

Standalone Institutions, subject to the Rules, Regulations and Guidelines of Government of India, may hire, without approval of the AICTE, foreign faculty having taught at any institution appearing in top five hundred of any of the world renowned ranking frameworks, such as the Times Higher Education World University Rankings or the QS Rankings, upto twenty percent over and above of their total sanctioned faculty strength. Standalone Institutions will have the freedom to hire foreign faculty on "tenure/contract" basis as per the terms and conditions approved by their Governing Council/Statutory bodies.

5.4

Standalone Institutions shall be free to admit foreign students on merit, subject to a maximum of twenty percent, over and above of the strength of their approved domestic students. Standalone Institutions would be free to fix and charge fees from foreign students without any restriction.

5.5

Standalone Institutions, while following the pay scales as laid down by the AICTE, shall build in an incentive structure to attract talented faculty, with the condition that the incentive structure shall have to be paid from their own revenue sources and not from AICTE or Government funds. Such incentive structure shall be strictly merit based with clear defined, transparent and objective criteria and shall not be universal. It must necessarily be approved by the Board of Management of the Institution. The AICTE shall be informed of the incentive structure within thirty days of approval by the Board of Management of the Institution.

5.6

Standalone Institutions may offer courses in the Open and Distance Learning mode, without approval of the AICTE, provided it satisfies all the norms & standard laid down by AICTE from time to time.

5.7

Standalone Institutions shall be exempted from annual monitoring of their institutes and learning resource centre(s), as

stipulated under AICTE approval process handbook as amended /modified from time to time, except when there is substantive evidence of their not meeting basic minimum criteria or of irregularities or malpractices.

5.8

In case there is any external review required by the AICTE under any statute or executive order, then it would be sufficient that the institution sends a report to the AICTE in a prescribed review format.

6.

Change in Category of Standalone Institutions for non-maintenance of accreditation score or ranking as defined in Clause 3.

- 6.1 Standalone Institutions under Category-I and Category-II shall continue to be in their respective categories as long as they maintain the required parameters related to accreditation score or international ranking as defined in Clause 3, as the case may be, for that category.

6.2

It shall be incumbent upon Standalone Institution to intimate the AICTE, its changed status within thirty days of such a change.

6.3

If Standalone Institution fails to maintain status in a category and moves down to a lower category, it shall not be entitled to enjoy any privileges already accorded to it from the day of such downgrading:

Provided that any kind of initiatives taken under the privileges associated with erstwhile higher status shall be permitted to continue till their approved duration / logical conclusion, provided that the activity / action initiated has been communicated previously to the AICTE:

Provided further that if such Standalone Institution regains back its earlier higher status, the privileges of that higher category shall be restored from the day the status is changed.

6.4

All Standalone Institutions shall have to submit student's data on AICTE portal and must register on National Academic Depository (NAD).

6.5

In case data is not uploaded as above on NAD the AICTE may not grant approval to the Institution for the next academic year or impose penalty as per Approval Process Handbook of AICTE.

7.

Procedure for Categorisation of Standalone Institutions.

- 7.1 The AICTE shall fix dates (at least two times in a year, preferably 1st of June and 1st of December) by which an institution shall submit a request in prescribed format for categorisation under these Regulations. The dates so fixed shall be notified at least three months in advance.

7.2

All such applications shall be scrutinized by the AICTE and orders on Categorisation shall be passed within thirty days from the last date specified for the receipt of such applications. During this period, the Institution and the AICTE shall both place such application on their websites.

8.

Change in parameters/requirements, if any, for eligibility under Category-I or Category-II of Standalone Institutions.

- Whenever there is a change in the categorisation parameters as detailed in Regulation (3) above, it shall be notified by the AICTE separately.

9.

Graded Autonomy Regulations vis-a-vis other Regulations.

- The provisions mentioned in the clause 4 and 5 of the Regulations i.e. dimensions of autonomy for Category-I Standalone Institutions and Category-II Standalone Institutions respectively, shall prevail in case of any inconsistent/conflicting provisions in the other AICTE Regulations.

10.

Removal of Difficulties.

- AICTE reserves the right to remove difficulty/difficulties in the course of implementation of these Regulations in consultation with the Government of India/ Ministry of Human Resource Development.

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